

Sample case

PART NINE: LEGISLATIVE DEPARTMENT - Article VI 1987 Constitution

I. Legislative power Section 1:

Section 1: The legislative power shall be vested in the Congress of the Philippines which shall consist of a Senate and a House of Representatives, except to the extent reserved to the people by the provision on initiative and referendum.

*Explanation: Legislative power is the authority under the Constitution to make, alter, and repeal laws. Section 1 vests this power in the **Congress of the Philippines**, which consists of a Senate and a House of Representatives (except to the extent reserved to the people by the provision on initiative and referendum).*

**Power of law making, the framing and the enactment of laws.*

**It is the authority, under the constitution, to make laws, and to alter, modify, and repeal laws.*

A. General Plenary powers

Plenary Nature: Legislative power is generally considered plenary or absolute. This means Congress has the broad authority to pass laws on any subject matter it deems necessary, provided it does not run afoul of the restrictions set by the Constitution. If the Constitution does not forbid an action, Congress generally has the power to do it.

Digest 1: Facts and Doctrine

Review Center v Ermita, 538 SCRA 428, GR no 180046 (April 2, 2010)

Facts:

Following a major nursing exam leakage scandal involving review centers, the President issued an executive order requiring review centers to be regulated by the Commission on Higher Education (CHED). Independent review centers challenged this order in court, arguing that the President did not have the authority to create such regulations without a new law from Congress. The Supreme Court agreed, ruling that the executive order was an unconstitutional expansion of power because only Congress has the authority to make laws and alter government agency mandates. Consequently, the Court declared both the executive order and its implementing rules invalid.

Doctrine:

Plenary power is vested in Congress. Executive orders issued by the President cannot be granted administrative power over bureaus and offices under his control to enable him to discharge his duties effectively. As head of the Executive Department, the President is the Chief Executive. He represents the government as a whole and sees to it that all laws are enforced by the officials and employees of

his department. Executive regulation must stay in the bounds of enabling law. The legislative body possesses plenary power for all purposes of civil government. Any power, deemed to be legislative by usage and tradition, is necessarily possessed by Congress, unless the Constitution has lodged it elsewhere. In fine, except as limited by the Constitution, either expressly or impliedly, legislative power embraces all subjects and extends to matters of general concern or common interest. While Congress is vested with the power to enact laws, the President executes the laws. The executive power is vested in the President. It is generally defined as the power to enforce and administer laws. It is the power of carrying the laws into practical operation and enforcing their due observance.

Digest 2: Facts Issue and Ruling and Doctrine Sub section

TOPIC EXPLAINED:

WHY THIS CASE MATTERS

Review Center v Ermita, 538 SCRA 428, GR no 180046 (April 2, 2010)

Facts

On 11 and 12 June 2006, the Professional Regulation Commission (PRC) conducted the Nursing Board Examinations nationwide. In June 2006, licensure applicants wrote the PRC to report that handwritten copies of two sets of examinations were circulated during the examination period among the examinees reviewing at the R.A. Gapuz Review Center and Inness Review Center. George Cordero, Ingress Review Center's President, was then the incumbent President of the Philippine Nurses Association.

The examinees were provided with a list of 500 questions and answers in two of the examinations' five subjects, particularly Tests III (Psychiatric Nursing) and V (Medical-Surgical Nursing). The PRC later admitted the leakage and traced it to two Board of Nursing members.³ On 19 June 2006, the PRC released the results of the Nursing Board Examinations. On 18 August 2006, the Court of Appeals restrained the PRC from proceeding with the oath-taking of the successful examinees set on 22 August 2006.

In view of the petitioner's continuing request to suspend and re-evaluate the IRR, Chairman Puno, in a letter dated 9 February 2007,⁷ invited petitioner's representatives to a dialogue on 14 March 2007. In accordance with what was agreed upon during the dialogue, petitioner submitted to the CHED its position paper on the IRR. Petitioner also requested the CHED to confirm in writing Chairman Puno's statements during the dialogue, particularly on lowering of the registration fee from ₱400,000 to ₱20,000 and the requirement for reviewers to have five years' teaching experience instead of five years' administrative

experience. Petitioner likewise requested for a categorical answer to their request for the suspension of the RIRR. The CHED did not reply to the letter.

With the issuance of the aforesaid Executive Order, the CHED now is the agency that is mandated to regulate the establishment and operation of all review centers as provided for under Section 4 of the Executive Order which provides that "No review center or similar entities shall be established and/or operate review classes without the favorable expressed indorsement of the CHED and without the issuance of the necessary permits or authorizations to conduct review classes.

To exclude the operation of independent review centers from the coverage of CHED would clearly contradict the intention of the said Executive Order No. 566.

Considering that the request requires the amendment of Executive Order No. 566, the Commission, during its 305th Commission Meeting, resolved that the said request be directly referred to the Office of the President for appropriate action.

As to the request to clarify what is meant by tie-up/be integrated with an HEI, as required under the Revised Implementing Rules and Regulations, tie-up/be integrated simply means, to be in partner with an HEI.¹² (Boldfacing and underscoring in the original)

On 26 October 2007, petitioner filed a petition for Prohibition and Mandamus before this Court praying for the annulment of the RIRR, the declaration of EO 566 as invalid and unconstitutional, and the prohibition against CHED from implementing the RIRR.

Dr. Freddie T. Bernal, Director III, Officer-In-Charge, Office of the Director IV of CHED, sent a letter¹³ to the President of Northcap Review Center, Inc., a member of petitioner, that it had until 27 November 2007 to comply with the RIRR.

Issue

1. Whether EO 566 is an unconstitutional exercise by the Executive of legislative power as it expands the CHED's jurisdiction; and
2. Whether the RIRR is an invalid exercise of the Executive's rule-making power.

Ruling

Yes, **EO 566 is an invalid exercise of legislative power, the RIRR is also an invalid exercise of the CHED's quasi-legislative power.**

The rule, however, is not absolute, as when exceptional and compelling circumstances justify the exercise of this Court of its primary jurisdiction. In this case, petitioner alleges that EO 566 expands the coverage of RA 7722 and in doing so, the Executive Department usurps the legislative powers of Congress.¹⁴ The issue in this case is not only the validity of the RIRR.

Otherwise, the proper remedy of petitioner and petitioners-intervenors would have been an ordinary action for the nullification of the RIRR before the Regional Trial Court.²¹ The alleged violation of the Constitution by the Executive Department when it issued EO 566 justifies the exercise by the Court of its primary jurisdiction over the case. The Court is not precluded from brushing aside technicalities and taking cognizance of an action due to its importance to the public and in keeping with its duty to determine whether the other branches of the Government have kept themselves within the limits of the Constitution

EO 566 Expands the Coverage of RA 7722

The OSG alleges that Section 3 of RA 7722 should be read in conjunction with Section 8, enumerating the CHED's powers and functions. In particular, the OSG alleges that the CHED has the power under paragraphs (e) and (n) of Section 8 to:

(e) monitor and evaluate the performance of programs and institutions of higher learning for appropriate incentives as well as the imposition of sanctions such as, but not limited to, diminution or withdrawal of subsidy, recommendation on the downgrading or withdrawal of accreditation, program termination or school closure;

(n) promulgate such rules and regulations and exercise such other powers and functions as may be necessary to carry out effectively the purpose and objectives of this Act[.]

The OSG justifies its stand by claiming that the term "programs x x x of higher learning" is broad enough to include programs offered by review centers.

Usurpation of Legislative Power

The OSG argues that President Arroyo was merely exercising her executive power to ensure that the laws are faithfully executed. The OSG further argues that President Arroyo was exercising her residual powers under Executive Order No. 292 (EO 292),²⁹ particularly Section 20, Title I of Book III, thus:

Section 20. Residual Powers. - Unless Congress provides otherwise, the President shall exercise such other powers and functions vested in the President which are provided for under the laws and which are not specifically enumerated above, or which are not delegated by the President in accordance with law. (Emphasis supplied)¹⁴

Section 20, Title I of Book III of EO 292 speaks of other powers vested in the President under the law.³⁰ The exercise of the President's residual powers under this provision requires legislation,³¹ as the provision clearly states that the exercise of the President's other powers and functions has to be "provided for under the law." There is no law granting the President the power to amend the functions of the CHED. The President may not amend RA 7722 through an Executive Order without prior legislation granting her such power.

The President has no inherent or delegated legislative power to amend the functions of the CHED under RA 7722. Legislative power is the authority to make laws and to alter or repeal them,³² and this power is vested with the Congress under Section 1, Article VI of the 1987 Constitution which states:

Section 1. The legislative power shall be vested in the Congress of the Philippines which shall consist of a Senate and a House of Representatives, except to the extent reserved to the people by the provision on initiative and referendum.

In *Ople v. Torres*,³³ the Court declared void, as a usurpation of legislative power, Administrative Order No. 308 (AO 308) issued by the President to create a national identification system. AO 308 mandates the adoption of a national identification system even in the absence of an enabling legislation. The Court distinguished between Legislative and Executive powers, as follows:

The line that delineates Legislative and Executive power is not indistinct. Legislative power is "the authority, under the Constitution, to make laws, and to alter and repeal them." The Constitution, as the will of the people in their original, sovereign and unlimited capacity, has vested this power in the Congress of the Philippines. The grant of legislative power to Congress is broad, general and comprehensive. The legislative body possesses plenary power for all purposes of civil government. Any power, deemed to be legislative by usage and tradition, is necessarily possessed by Congress, unless the Constitution has lodged it elsewhere. In fine, except as limited by the Constitution, either expressly or impliedly, legislative power embraces all subjects and extends to matters of general concern or common interest.

While Congress is vested with the power to enact laws, the President executes the laws. The executive power is vested in the President. It is generally defined as the power to enforce and administer laws. It is the power of carrying the laws into practical operation and enforcing their due observance.

As head of the Executive Department, the President is the Chief Executive. He represents the government as a whole and sees to it that all laws are enforced by the officials and employees of his department. He has control over the executive department, bureaus and offices. This means that he has the authority to assume directly the functions of the executive department, bureau and office, or interfere with the discretion of its officials. Corollary to the power of control, the President also has the duty of supervising the enforcement of laws for the maintenance of general peace and public order. Thus, he is granted administrative power over bureaus and offices under his control to enable him to discharge his duties effectively.

Administrative power is concerned with the work of applying policies and enforcing orders as determined by proper governmental organs. It enables the President to fix a uniform standard of administrative efficiency and check the official conduct of his agents. To this end, he can issue administrative orders, rules and regulations.

x x x. An administrative order is:

"Sec. 3. Administrative Orders. - Acts of the President which relate to particular aspects of governmental operation in pursuance of his duties as administrative head shall be promulgated in administrative orders."

An administrative order is an ordinance issued by the President which relates to specific aspects in the administrative operation of government. It must be in harmony with the law and should be for the sole purpose of implementing the law and carrying out the legislative policy. x x x.³⁴

Just like AO 308 in *Ople v. Torres*, EO 566 in this case is not supported by any enabling law. The Court further stated in *Ople*:

x x x. As well stated by Fisher: "x x x Many regulations however, bear directly on the public. It is here that administrative legislation must be restricted in its scope and application. Regulations are not supposed to be a substitute for the general policy-making that Congress enacts in the form of a public law. Although administrative regulations are entitled to respect, the authority to prescribe rules and regulations is not an independent source of power to make laws."³⁵

Since EO 566 is an invalid exercise of legislative power, the RIRR is also an invalid exercise of the CHED's quasi-legislative power.

Administrative agencies exercise their quasi-legislative or rule-making power through the promulgation of rules and regulations.³⁶ The CHED may only exercise its rule-making power within the confines of its jurisdiction under RA 7722. The RIRR covers review centers and similar entities which are neither institutions of higher education nor institutions offering degree-granting programs.

Exercise of Police Power

Police power to prescribe regulations to promote the health, morals, education, good order or safety, and the general welfare of the people flows from the recognition that *salus populi est suprema lex* – the welfare of the people is the supreme law.³⁷ Police power primarily rests with the legislature although it may be exercised by the President and administrative boards by virtue of a valid delegation.³⁸ Here, no delegation of police power exists under RA 7722 authorizing the President to regulate the operations of non-degree granting review centers.

Republic Act No. 8981 is Not the Appropriate Law

It is argued that the President of the Philippines has adequate powers under the law to regulate review centers and this could have been done under an existing validly delegated authority, and that the appropriate law is Republic Act No. 8981 (RA 8981). Under Section 5 of RA 8981, the PRC is mandated to "establish and maintain a high standard of admission to the practice of all professions and at all times ensure and safeguard the integrity of all licensure examinations." Section 7

of RA 8981 further states that the PRC shall adopt "measures to preserve the integrity and inviolability of licensure examinations."

There is no doubt that a principal mandate of the PRC is to preserve the integrity of licensure examinations. The PRC has the power to adopt measures to preserve the integrity and inviolability of licensure examinations. However, this power should properly be interpreted to refer to the conduct of the examinations. The enumeration of PRC's powers under Section 7(e) includes among others, the fixing of dates and places of the examinations and the appointment of supervisors and watchers. The power to preserve the integrity and inviolability of licensure examinations should be read together with these functions. These powers of the PRC have nothing to do at all with the regulation of review centers.

The PRC has the power to investigate any of the members of the Professional Regulatory Boards (PRB) for "commission of any irregularities in the licensure examinations which taint or impugn the integrity and authenticity of the results of the said examinations."⁴⁰ This is an administrative power which the PRC exercises over members of the PRB. However, this power has nothing to do with the regulation of review centers. The PRC has the power to bar PRB members from conducting review classes in review centers. However, to interpret this power to extend to the power to regulate review centers is clearly an unwarranted interpretation of RA 8981. The PRC may prohibit the members of the PRB from conducting review classes at review centers because the PRC has administrative supervision over the members of the PRB. However, such power does not extend to the regulation of review centers.

Section 7(y) of RA 8981 giving the PRC the power to perform "such other functions and duties as may be necessary to carry out the provisions" of RA 8981 does not extend to the regulation of review centers. There is absolutely nothing in RA 8981 that mentions regulation by the PRC of review centers.

The Court cannot likewise interpret the fact that RA 8981 penalizes "any person who manipulates or rigs licensure examination results, secretly informs or makes known licensure examination questions prior to the conduct of the examination or tampers with the grades in the professional licensure examinations"⁴¹ as a grant of power to regulate review centers. The provision simply provides for the penalties for manipulation and other corrupt practices in the conduct of the professional examinations.

The assailed EO 566 seeks to regulate not only review centers but also "similar entities." The questioned CHED RIRR defines "similar entities" as referring to "other review centers providing review or tutorial services in areas not covered by licensure examinations given by the PRC including but not limited to college entrance examinations, Civil Service examinations, tutorial services in specific fields like English, Mathematics and the like."⁴² The PRC has no mandate to supervise review centers that give courses or lectures intended to prepare examinees for licensure examinations given by the PRC. It is like the Court regulating bar review centers just because the Court conducts the bar examinations. Similarly, the PRC has no mandate to regulate similar entities whose

reviewees will not even take any licensure examination given by the PRC.

Doctrine

Plenary power is vested in Congress. Executive orders issued by the President cannot be grant administrative power over bureaus and offices under his control to enable him to discharge his duties effectively. As head of the Executive Department, the President is the Chief Executive. He represents the government as a whole and sees to it that all laws are enforced by the officials and employees of his department. Executive regulation must stay in the bounds of enabling law. The legislative body possesses plenary power for all purposes of civil government. Any power, deemed to be legislative by usage and tradition, is necessarily possessed by Congress, unless the Constitution has lodged it elsewhere. In fine, except as limited by the Constitution, either expressly or impliedly, legislative power embraces all subjects and extends to matters of general concern or common interest.

While Congress is vested with the power to enact laws, the President executes the laws. The executive power is vested in the President. It is generally defined as the power to enforce and administer laws. It is the power of carrying the laws into practical operation and enforcing their due observance.

TOPIC EXPLAINED:

The case revolves around the constitutionality of Executive Order No. 566 (EO 566)—which mandated the Commission on Higher Education (CHED) to regulate the establishment and operation of all review centers and similar entities—and its corresponding Revised Implementing Rules and Regulations (RIRR).

The core issues addressed by the Supreme Court were:

Whether EO 566 was an unconstitutional exercise of legislative power by the Executive branch that improperly expanded CHED's jurisdiction beyond Republic Act No. 7722.

Whether the RIRR promulgated by CHED was a valid exercise of its quasi-legislative rule-making power.

Supreme Court Ruling

The Supreme Court ruled that EO 566 is an unconstitutional and invalid exercise of legislative power, and consequently, the RIRR is an invalid exercise of CHED's quasi-legislative power. The Court held that:

Legislative power—the authority to make, alter, and repeal laws—is vested exclusively in Congress under Section 1, Article VI of the 1987 Constitution. The President has no inherent or delegated legislative power to expand the statutory functions and jurisdiction of CHED (under RA 7722) to include non-degree-granting review centers without prior enabling legislation from Congress.

Neither Republic Act No. 7722 nor Republic Act No. 8981 (PRC's mandate) grants the Executive Department or administrative agencies the authority to regulate review centers. Administrative rules and executive orders must remain strictly within the bounds of an enabling law and cannot be used as a substitute for

legislative policy-making.

WHY THIS CASE MATTERS

Upholds the Separation of Powers: It serves as a vital precedent reinforcing the constitutional boundaries between the Legislative branch (which creates laws and defines agency mandates) and the Executive branch (which enforces laws).

Restricts Executive Overreach: It establishes that executive orders and administrative regulations cannot unilaterally expand government agency jurisdiction or impose new regulatory burdens on the public without explicit statutory authorization from Congress.

Clarifies Administrative Rule-Making: It affirms that administrative agencies (such as CHED and the PRC) possess only delegated rule-making powers that must strictly conform to the confines of their enabling statutes, protecting industries and entities from unauthorized bureaucratic regulation.